

SUPREME CRACKDOWN

The Supreme Court wants the Food Safety and Standards Authority of India (FSSAI) to implement a clear mandate against packaged foods high in sugar, salt or saturated fat. It includes:

- **RED HEXAGONAL WARNING LABEL:** A red hexagonal label on the front of packaged food to give consumers a clear warning
- **SPECIFIC WARNINGS** It can state 'HIGH FAT', 'HIGH SUGAR', 'HIGH SALT' and 'HIGH FAT'
- **SIZE AND COLOUR:** It is proposed to be a bold, high-contrast standalone warning easily visible from a distance
- **NUTRITION GUIDELINES** The thresholds will be based on the Dietary Guidelines for Indians, 2024, issued by ICMR-National Institute of Nutrition
- **COMPLIANCE RUNWAY** Food Business Operators are given a deadline to clear existing packaging inventories and re-engineer their retail print architectures

The battle is over a few square centimetres. Yet it could determine how millions of Indians decide what to eat. We are talking about the label on food products. Walk down a supermarket aisle and the front of the colourful package beckons you enticingly: 'high protein', 'no added sugar', 'multigrain', 'heart-healthy' or 'rich in vitamins'. But how much sugar, salt or saturated fat the product has is usually relegated to a nutritional table on the back, in small type that is hard to decipher. And studies have repeatedly shown that an excessive amount of any of these ingredients can be extremely harmful.

For decades, this arrangement attracted relatively little attention. Now, it has become far harder to defend because India's disease profile has changed alarmingly. Non-communicable diseases such as diabetes, obesity, hypertension and cardiovascular ailments are taking an enormous toll even as consumption of packaged and highly processed foods expands. That is why an apparently technical dispute over Front-of-Pack Labelling (FOPL) travelled all the way to the Supreme Court. The court is ruling on a PIL filed by the non-profit 3S and Our Health Society, seeking prominent warnings on packaged foods containing excessive quantities of sugar, salt and saturated fat.

Suddenly, a debate that had been confined to regulators, food companies and health activists has become a national one. Do Indian consumers have the right to be warned, clearly and instantly, about excessive quantities of ingredients associated with poor health in their food? How do you provide that warning while being fair to the $140 billion (Rs 13.3 lakh crore) food processing industry in India?

THE HEALTH WARNINGS

To its credit, the Food Safety and Standards Authority of India (FSSAI), the regulatory body under the Union ministry of health, has been sending notices, over 150 to be precise, to several food companies over misleading advertisements, false claims and non-compliance with its labelling rules and regulations. Among them are FMCG behemoths like Nestlé, PepsiCo, Coca-Cola, Red Bull India and, more recently, CG Foods India, which was asked to stop producing *bhujia namkeen* over hygiene violations.

Yet on the question of FOPL to warn consumers of the dangers of some ingredients being used, the FSSAI spent years on drafts and consultations that led to much delay, forcing the Supreme Court to express impatience over it. In a hearing on September 10, the apex court said, "We are concerned about the health of people, especially growing children. Everyone should come forward and cooperate in the national interest." The court will issue a detailed order and has scheduled the next hearing for September 28.

What makes the matter even more urgent are the findings of sundry health studies, including one backed by the Indian Council of Medical Research (ICMR) published in *The Lancet* in 2023. It estimated that 101 million Indians were living with diabetes and 136 million with pre-diabetes. The study put the prevalence of obesity at 28.6 per cent and hypertension at 35.5 per cent. The scale of the problem even prompted Prime Minister Narendra Modi to urge Indians to cut their consumption of sugar and oil by 10 per cent to tackle the rising burden of obesity and lifestyle diseases.

The danger has grown because, beyond the concerns raised in the past over additives and preservatives such